Stanmore – Exxaro Australia Holdings

MN-05054

Phase 1 Determination

Acquisition may be put into effect

29 October 2026

1. Determination and statement of reasons

Notified acquisition	Stanmore Resources Limited (ASX: SMR) (**Stanmore**), via its subsidiary Dawn Coal Pty Ltd, proposes to acquire 100% of the shareholdings in Exxaro Australia Holdings Pty Ltd (**Exxaro Australia Holdings**) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Stanmore, is a majority owned subsidiary of Golden Energy and Resources Pte Ltd (**GEAR**), a resources and investment company headquartered in Singapore. In Australia, Stanmore (and its connected entities, including GEAR) explore, develop and produce metallurgical coal. The target, Exxaro Australia Holdings, owns an interest in mining assets, consisting of two mineral development licences and an exploration permit for an undeveloped underground coal project located in Moranbah South, Queensland. Exxaro Australia Holdings is owned by Exxaro Resources Limited, a South African mining company which produces both thermal coal (used for power generation) and metallurgical (coking) coal.
Overlap between the Parties	In Australia, there is no existing horizontal overlap or vertical relationship between Stanmore and Exxaro Australia Holdings. Potential overlap arises from the possibility that Exxaro Australia Holdings would develop its existing coal project in the future without the Acquisition.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, and third party feedback. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • there is no existing horizontal overlap between Stanmore's metallurgical coal production and the activities of Exxaro Australia Holdings. • the merged firm would continue to face competition from

	other suppliers of metallurgical coal in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act